

Amendment No. 1 to SB1083

Briggs
Signature of Sponsor

AMEND Senate Bill No. 1083

House Bill No. 622*

by deleting all language after the enacting clause and substituting:

SECTION 1. This act is known and may be cited as the "Dismantle DEI in Employment Act."

SECTION 2. Tennessee Code Annotated, Title 5, Chapter 1, Part 1, is amended by adding the following as a new section:

(a) The general assembly finds that local governments are at their most effective when the employees of the local government are the most highly qualified candidates for employment with the local government and that hiring decisions should be based on merit rather than any other metric.

(b) A county government shall not base an employment decision on any metric that considers an applicant's or employee's race, ethnicity, sex, age, or any other demographic characteristic, rather than on individual merit, qualifications, veteran status, or lawful eligibility criteria.

(c)

(1) This section does not apply to an employment decision of a county government, if the county government submits notice in writing to the comptroller of the treasury that compliance with this section would result in a loss of federal funding, to the extent such an exemption for the employment decision is necessary to conform to federally awarded or amended contracts, subcontracts, or postsecondary grants as a condition to receipt of federal funds. The comptroller of the treasury shall create guidelines as to what information is

required in the notice. The comptroller shall review a notice submitted by a county government and, if the comptroller finds that compliance would result in the loss of federal funding, then the comptroller shall notify the county government in writing of its exemption.

(2) After one (1) calendar year from the date on which the comptroller exempts an employment decision by a county government from this section, the county government shall submit in writing to the comptroller to have the exemption renewed for an additional one-year period. A county government shall notify the comptroller within fourteen (14) days if the conditions or justifications for the comptroller granting the exemption no longer exist.

(d) As used in this section, "employment decision":

(1) Means any action or determination relating to the hiring, firing, retention, promotion, demotion, discipline, evaluation, compensation, training, reassignment, or any other term, condition, or privilege of employment; and

(2) Does not include actions required under applicable state or federal employment laws.

SECTION 3. Tennessee Code Annotated, Title 6, Chapter 54, Part 1, is amended by adding the following as a new section:

(a) The general assembly finds that local governments are at their most effective when the employees of the local government are the most highly qualified candidates for employment with the local government and that hiring decisions should be based on merit rather than any other metric.

(b) A municipal government shall not base an employment decision on any metric that considers an applicant's or employee's race, ethnicity, sex, age, or any other demographic characteristic, rather than on individual merit, qualifications, veteran status, or lawful eligibility criteria.

(c)

(1) This section does not apply to an employment decision of a municipal government, if the municipal government submits notice in writing to the comptroller of the treasury that compliance with this section would result in a loss of federal funding, to the extent such an exemption for the employment decision is necessary to conform to federally awarded or amended contracts, subcontracts, or postsecondary grants as a condition to receipt of federal funds. The comptroller of the treasury shall create guidelines as to what information is required in the notice. The comptroller shall review a notice submitted by a municipal government and, if the comptroller finds that compliance would result in the loss of federal funding, then the comptroller shall notify the municipal government in writing of its exemption.

(2) After one (1) calendar year from the date on which the comptroller exempts an employment decision by a municipal government from this section, the municipal government shall submit in writing to the comptroller to have the exemption renewed for an additional one-year period. A municipal government shall notify the comptroller within fourteen (14) days if the conditions or justifications for the comptroller granting the exemption no longer exist.

(d) For the purposes of this section, "employment decision":

(1) Means any action or determination relating to the hiring, firing, retention, promotion, demotion, discipline, evaluation, compensation, training, reassignment, or any other term, condition, or privilege of employment; and

(2) Does not include actions required under applicable state or federal employment laws.

SECTION 4. Tennessee Code Annotated, Title 7, Chapter 3, Part 1, is amended by adding the following as a new section:

(a) The general assembly finds that local governments are at their most effective when the employees of the local government are the most highly qualified candidates for

employment with the local government and that hiring decisions should be based on merit rather than any other metric.

(b) A metropolitan government shall not base an employment decision on any metric that considers an applicant's or employee's race, ethnicity, sex, age, or any other demographic characteristic, rather than on individual merit, qualifications, veteran status, or lawful eligibility criteria.

(c)

(1) This section does not apply to an employment decision of a metropolitan government, if the metropolitan government submits notice in writing to the comptroller of the treasury that compliance with this section would result in a loss of federal funding, to the extent such an exemption for the employment decision is necessary to conform to federally awarded or amended contracts, subcontracts, or postsecondary grants as a condition to receipt of federal funds. The comptroller of the treasury shall create guidelines as to what information is required in the notice. The comptroller shall review a notice submitted by a metropolitan government and, if the comptroller finds that compliance would result in the loss of federal funding, then the comptroller shall notify the metropolitan government in writing of its exemption.

(2) After one (1) calendar year from the date on which the comptroller exempts an employment decision by a metropolitan government from this section, the metropolitan government shall submit in writing to the comptroller to have the exemption renewed for an additional one-year period. A metropolitan government shall notify the comptroller within fourteen (14) days if the conditions or justifications for the comptroller granting the exemption no longer exist.

(d) For the purposes of this section, "employment decision":

(1) Means any action or determination relating to the hiring, firing, retention, promotion, demotion, discipline, evaluation, compensation, training, reassignment, or any other term, condition, or privilege of employment; and

(2) Does not include actions required under applicable state or federal employment laws.

SECTION 5. Tennessee Code Annotated, Title 49, Chapter 2, Part 1, is amended by adding the following as a new section:

(a) The general assembly finds that LEAs are at their most effective when the faculty members and employees of the LEAs are the most highly qualified candidates for employment with the LEAs and that hiring decisions should be based on merit rather than any other metric.

(b) An LEA shall not base an employment decision on any metric that considers an applicant's or employee's race, ethnicity, sex, age, or any other demographic characteristic, rather than on individual merit, qualifications, veteran status, or lawful eligibility criteria.

(c)

(1) This section does not apply to an employment decision of an LEA, if the LEA submits notice in writing to the comptroller of the treasury that compliance with this section would result in a loss of federal funding, to the extent such an exemption for the employment decision is necessary to conform to federally awarded or amended contracts, subcontracts, or postsecondary grants as a condition to receipt of federal funds. The comptroller of the treasury shall create guidelines as to what information is required in the notice. The comptroller shall review a notice submitted by an LEA and, if the comptroller finds that compliance would result in the loss of federal funding, then the comptroller shall notify the LEA in writing of its exemption.

(2) After one (1) calendar year from the date on which the comptroller exempts an employment decision by an LEA from this section, the LEA shall submit in writing to the comptroller to have the exemption renewed for an additional one-year period. An LEA shall notify the comptroller within fourteen (14) days if the conditions or justifications for the comptroller granting the exemption no longer exist.

(d) For the purposes of this section, "employment decision":

(1) Means any action or determination relating to the hiring, firing, retention, promotion, demotion, discipline, evaluation, compensation, training, reassignment, or any other term, condition, or privilege of employment; and

(2) Does not include actions required under applicable state or federal employment laws.

SECTION 6. Tennessee Code Annotated, Title 49, Chapter 7, Part 1, is amended by adding the following as a new section:

(a) The general assembly finds that public institutions of higher education are at their most effective when the faculty members and employees of the institutions are the most highly qualified candidates for employment with the institutions and that hiring decisions should be based on merit rather than any other metric.

(b) A public institution of higher education shall not base an employment decision on any metric that considers an applicant's or employee's race, ethnicity, sex, age, or any other demographic characteristic, rather than on individual merit, qualifications, veteran status, or lawful eligibility criteria.

(c)

(1) This section does not apply to an employment decision of a public institution of higher education government, if the public institution of higher education submits notice in writing to the comptroller of the treasury that compliance with this section would result in a loss of federal funding, to the

extent such an exemption for the employment decision is necessary to conform to federally awarded or amended contracts, subcontracts, or postsecondary grants as a condition to receipt of federal funds. The comptroller of the treasury shall create guidelines as to what information is required in the notice. The comptroller shall review a notice submitted by a public institution of higher education and, if the comptroller finds that compliance would result in the loss of federal funding, then the comptroller shall notify the public institution of higher education in writing of its exemption.

(2) After one (1) calendar year from the date on which the comptroller exempts an employment decision by a public institution of higher education from this section, the public institution of higher education shall submit in writing to the comptroller to have the exemption renewed for an additional one-year period. A public institution of higher education shall notify the comptroller within fourteen (14) days if the conditions or justifications for the comptroller granting the exemption no longer exist.

(d) For the purposes of this section, "employment decision":

(1) Means any action or determination relating to the hiring, firing, retention, promotion, demotion, discipline, evaluation, compensation, training, reassignment, or any other term, condition, or privilege of employment; and

(2) Does not include actions required under applicable state or federal employment laws.

SECTION 7. Tennessee Code Annotated, Title 8, Chapter 30, Part 1, is amended by adding the following as a new section:

(a) The general assembly finds that the state government is at its most effective when the employees of the state government are the most highly qualified candidates for employment with the state government and that hiring decisions should be based on merit rather than any other metric.

(b) This state shall not base an employment decision on any metric that considers an applicant's or employee's race, ethnicity, sex, age, or any other demographic characteristic, rather than on individual merit, qualifications, veteran status, or lawful eligibility criteria.

(c)

(1) This section does not apply to an employment decision of this state, if the state submits notice in writing to the comptroller of the treasury that compliance with this section would result in a loss of federal funding, to the extent such an exemption for the employment decision is necessary to conform to federally awarded or amended contracts, subcontracts, or postsecondary grants as a condition to receipt of federal funds. The comptroller of the treasury shall create guidelines as to what information is required in the notice. The comptroller shall review a notice submitted by the state and, if the comptroller finds that compliance would result in the loss of federal funding, then the comptroller shall notify the state in writing of its exemption.

(2) After one (1) calendar year from the date on which the comptroller exempts an employment decision by a public institution of higher education from this section, the state shall submit in writing to the comptroller to have the exemption renewed for an additional one-year period. The state shall notify the comptroller within fourteen (14) days if the conditions or justifications for the comptroller granting the exemption no longer exist.

(d) For the purposes of this section, "employment decision":

(1) Means any action or determination relating to the hiring, firing, retention, promotion, demotion, discipline, evaluation, compensation, training, reassignment, or any other term, condition, or privilege of employment; and

(2) Does not include actions required under applicable state or federal employment laws.

SECTION 8. Tennessee Code Annotated, Section 49-1-302(g), is amended by deleting the subsection and substituting instead:

(g) The board shall not adopt a policy that promotes educator diversity based on race, ethnicity, sex, age, or any other demographic characteristic, rather than on individual merit, qualifications, veteran status, or lawful eligibility criteria. Any policy previously adopted by the board in conflict with this subsection is void and of no effect.

SECTION 9. This act takes effect upon becoming a law, the public welfare requiring it.